MINUTES OF A REGULAR MEETING OF THE TOWN COUNCIL
OF THE TOWN OF MEDLEY, FLORIDA
JULY 6, 2021

A regular meeting of the Town Council was called to order on July 6, 2021, at 7:00 p.m. The following were present:

MAYOR:	ROBERTO MARTELL
VICE-MAYOR:	IVAN PACHECO
COUNCIL MEMBERS:	EDGAR AYALA LIZELH AYALA LILY STEFANO
TOWN CLERK:	VICTORIA MARTINEZ
TOWN ATTORNEY:	LILLIAN ARANGO

The Invocation was given by Councilperson Ayala who dedicated a special moment of thought and prayers for the passing of resident Rhys Reyes and the victims and those affected by the collapse of the Champlain Towers in the Town of Surfside. The Pledge of Allegiance to the Flag of the United States was then recited by everyone in attendance.

In continuance, a motion to approve the minutes of the June 7, 2021 regular council meeting was placed by Vice-Mayor Pacheco, seconded by Councilperson Ayala, and carried unanimously. In addition, a motion to approve the minutes of the June 16, 2021 special council meeting was placed by Vice-Mayor Pacheco, seconded by Councilperson Stefano, and carried unanimously.

Before the meeting's agenda was adopted, it was announced that section 12. Resolutions Item I, Town of Medley Item 1 were tabled. It was also announced that Town of Medley Item 5 was withdrawn. In addition, Councilwoman Ayala requested to include an Add-On Item to the Section 13. Town of Medley Items of the Agenda. The item was announced as follows:

- Item 13(A)18 Request by Councilwoman Ayala for Discussion and Action on the Request to Have Police Presence on all Regular and Public Meetings.

Without objection, a motion to add the requested Add-On item was placed by Councilwoman Ayala, seconded by Councilperson Ayala, and carried unanimously. Consequently, a motion to adopt the meeting's agenda including tabling item 12(I) and Town of Medley Item (1), the withdrawal of Town of Medley Item (5) , and the Add-On Town of Medley Item 18 was then made by Vice-Mayor Pacheco, seconded by Mayor Martell and carried unanimously.

The mayor then moved to the Special Presentation section of the agenda and the following

presentation took place.

- Special Presentation of Proclamation by the Medley Town Council to Raudel Ochoa.

The proclamation presented to resident Raudel Ochoa was read into the record by Councilwoman Stefano and the resident was called to the podium to be recognized for his volunteered work and characteristics referenced in the proclamation. Mr. Ochoa thanked the Mayor, Town Council, and the Police Department for their support.

The proclamation was also read out loud to the audience in the Spanish language.

In continuance, the public comment section of the agenda was opened for any public comments. No public comments were made.

Mayor Martell then continued to address the Town of Medley Items section of the agenda. They were discussed and acted upon as follows,

- Discussion and Action on the Appointment of One (1) Full-Time Senior Jet-Vactor Operator Position for the Stormwater Department.

Jorge Soto, Director of the Stormwater and Utilities Department approached the Town Council to address the item for which he recommended current Town Employee Roberto Ramayo to fill the Senior Jet-Vactor Operator position. Without further discussion, Mayor Martell made a motion as follows:

"TO APPOINT ROBERTO RAMAYO TO FILL THE SENIOR JET-VACTOR OPERATOR POSITION FOR THE STORMWATER DEPARTMENT."

Councilperson Ayala seconded the motion and it carried unanimously.

- Discussion and Action on the Appointment of One (1) Full- Time Jet-Vactor Operator Position for the Stormwater Department.

Director Soto also addressed the agenda item below and recommended employee Rolando Sotolongo to fill said position with the Stormwater department. Without further discussion, Mayor Martell made a motion as follows:

"TO APPOINT ROLANDO SOTOLONGO TO FILL THE JET-VACTOR OPERATOR POSITION FOR THE STORMWATER DEPARTMENT."

Vice-Mayor Pacheco seconded the motion, and it was carried unanimously.

- Discussion and Action on the Appointment of Laborer I and Laborer II Positions for the Public Works Department.

Public Works Director Heriberto Cabrera approached the Medley Town Council and

recommended applicants Cesar Montano and Livan Marrero to fill the Laborer position with the Public Works department. In addition, director Cabrera recommended applicant Manuel Gonzalez to fill the Laborer II position with the Public Works department. Without further discussion Mayor Martell made a motion as follows,

> "TO APPOINT APPLICANTS CESAR MONTANO AND LIVAN MARRERO TO FILL THE LABORER POSITION AND TO APPOINT APPLICANT MANUEL GONZALEZ TO FILL THE LABORER II POSITION WITH THE PUBLIC WORKS DEPARTMENT EFFECTIVE JULY 9, 2021."

Councilwoman Ayala seconded the motion, and it was carried unanimously.

The next item addressed was Resolution 12(B). It was discussed and acted upon as follows:

- Resolution C-1917 Relating to the Medley Capital Assessment Area 09-Pelmad; Describing the Property to be Included Within the Proposed Medley Capital Assessment Area 09-Pelmad and the Local Improvements to be Provided Therein; Determining the Estimated Capital Cost of the Medley 09-Pelmad Project; Establishing the Method of Assessing the Project Cost Against the Properties That Will Be Benefitted Thereby; Directing the Finance Director to Prepare a Preliminary Assessment Roll; Establishing a Public Hearing to Consider Imposition of the Proposed Assessments and the Method of their Collection; Directing for Provision of Notice.

Town Attorney Lillian Arango read the resolution into the record. Without further discussion, Mayor Martell made a motion to approve Resolution C-1917. Councilperson Ayala seconded the motion, and it was carried unanimously.

- Resolution C-1918 Approving the Proposal and Work Order with R.J. Behar & Company, Inc. to Provide Professional Construction Engineering and Inspection Services for Segment 2 of the Lehigh Lakes Shoreline Repairs Project.

Town Attorney Lillian Arango read the resolution into the record. Councilwoman Stefano expressed questions regarding the amount of the workorder for the work being performed. Town Engineer Jorge Corzo responded and stated that said professional work was stipulated under contractual obligations of the state contract for the project. Thus, the certification was in fact required. Without further discussion, Vice-Mayor Pacheco made a motion to approve Resolution C-1918. Councilperson Ayala seconded the motion, and it was carried unanimously.

- Resolution C-1919 Approving the Proposal and Work Order with Cunningham and Durrance Consulting Engineers, Inc. to Provide Professional Surveying Services for Right-of-Ways Located Along NW 87th Avenue.

Town Attorney Lillian Arango read the Resolution into the record. Councilwoman Stefano inquired as to the number of right-of-ways included in the scope of work. Town Engineer Jorge Corzo stated that the work order covers one (1) right-of-way with crossroads in addition to the completion of the Town of Medley Right-of-Way map so that the Town can transfer ownership of NW 8^{7th} Avenue to Miami-Dade County in accordance with the agreement executed for the for the project. Councilperson Ayala inquired about the not to exceed amount for the work order. Town Engineer Corzo reviewed and further explained the hourly fees, not to exceed amount and total cost associated with the work asked to be performed by the consultant.

Without further discussion, Councilperson Ayala made a motion to approve Resolution C-1919. Councilperson Stefano seconded the motion, and it was carried unanimously.

- Resolution C-1920 Approving the Proposal and Work Order with A & P Consulting Transportation Engineers, Corp. to Provide Professional Construction Engineering and Inspection Services for the NW 74th Street Replacement & Utility Adjustment Project from NW 74th Avenue to NW 69th Avenue.

Town Attorney Lillian Arango read the Resolution into the record. Councilwoman Stefano inquired about the total amount of the work order and asked if the proposal amount could be negotiated. Town Engineer Jorge Corzo responded and explained that he had already tried but in accordance with the funding specifications of the project agreement, it was required to have separate professional firm to perform the inspection services.

Without further discussion, Councilperson Ayala made a motion to approve Resolution C-1920. Councilwoman Ayala seconded the motion, and it was carried unanimously.

- Resolution C-1921 Approving Proposal and Work Order with Calvin, Giordano & Associates, Inc. to Provide General Planning and Zoning Services.

Town Attorney Lillian Arango read the Resolution into the record. Councilperson Ayala inquired on whether or not an RFP for the services proposed had to be performed. Building and Zoning Director, Richard McConachie responded and explained that he was not aware of said requirement nor need. Town Attorney Lillian Arango further explained that said services and fees were obtained through an RFQ process back in 2014, therefore the services were procured as mandated by Florida Statute. Town Attorney Arango further stated that if the Town wished to render another Request for Qualification, it was most likely that same firms would be selected. Building and Zoning director McConachie expressed he works very closely with the firm and is pleased with the services as provided by Calvin Giordano & Associates. Councilperson Ayala recommended to freshen the procurement process and render another Request for Qualifications (RFQ) next year. Councilwoman Stefano inquired about the not-to exceed amount of the work order and it was explained that the charges for the work performed was capped at the amount of the work order.

Without further discussion, Councilperson Ayala made a motion to approve Resolution C-1921. Councilwoman Stefano seconded the motion, and it was carried unanimously.

The next item discussed were the following Town of Medley items. They were discussed

and acted upon as follows,

- Request by Mayor Martell for Discussion and Action on the Installation of a Concrete Pre-Cast Wall Along the 600's Lots of the Lakeside Retirement Park.

Mayor Martell began the discussion by bringing attention to the estimates/proposals previously circulated for the proposed item. Mayor Martell further explained that the proposed concrete wall would provide security to the residents located in the 600's lots. Town Attorney Lillian Arango stated that three (3) new proposals could be obtained for the work requested or the Town could simply expand the previous work order issued for the construction of the concrete wall along NW 107th Avenue that was previously solicited and approved. Town Attorney Arango also mentioned that the Town Council can formally waive the procurement process if the need to erect the wall was a safety and/or a wellbeing of the residents.

Mayor Martell translated the intent of the matter into the Spanish language for those in attendance. Councilperson Ayala asked to table the item for future discussion since the proposed wall shown to run along the Lakeside Parcel "B" that was recently approved to be cleaned and converted into a passive park. Lourdes Rodriguez, resident of lot 729 of the Lakeside Retirement Park spoke on the matte and asked the Council to inform the lakeside residents and ask them for input before the matter is move forward for action. Vice-Mayor Pacheco referred to the Town of Medley Public Informational Meeting of June 21, 2021 in which lakeside residents spoke in favor of the Mayor's proposal for the Lakeside Parcel "B". Medley residents Loly Tuya and Fortunana Castellanos also spoke on the matter and spoke about what took place at the informational meeting of June 21, 2021. Residents Maria Aleman residing at NW South River Drive also spoke about what took place during the June 21, 2021 informational meeting and expressed agreement with the improvements performed by the Town during the last few years. Alejandro Martinez resident of 8181 NW South River Drive Lot E-549 also spoke about what transpired at the public informational meeting of June 21, 2021 and pleaded for the Town Council to stop arguing and work together.

Councilperson Ayala joined the discussion and clarified to what in his opinion took place before and during the informational meeting of June 21, 2021. In addition, Councilperson Ayala expressed his disagreement with the Mayor's proposal in entering into a long-term lease for the Lakeside Parcel "B" to unknown investors as opposed to use the property for a public and community benefit. Councilman Ayala further stated that he has been in contact with federal sources with the idea to potentially develop the property in question for housing purposes.

Councilwoman Stefano explained that the Lakeside Parcel "B" is zoned R-1 which makes it designated it for residential purposes and not commercial unless the zoning designation is changed. Councilwoman Stefano further stated that when the use of the property was decided, the Mayor's idea of the senior care facility was approved but it has yet to take place. Resident Alfonso Alfonso residing at the Lakeside Retirement Park Lot 657 also spoke on the matter and reinstated what he said at the public informational meeting of June 21, 2021 which is to ask the Town to prioritize the cleaning of the parcel "B" and then address the possibilities of development. Mr. Alsonso further stated that the proposed concrete wall along the 600's lots should be discussed with the affected residents.

Discussion between council and attendees was partly made in the Spanish language. It was then briefly translated into the English language for general information and records purposes.

Vice-Mayor Pacheco placed a motion to approve and extend the previous work order to include the construction of the concrete wall along NW105th Way and 600's lots due to the safety and wellbeing of the residents. However, Vice-Mayor withdrew his motion.

Councilwoman Ayala then place a motion as follows,

> "TO TABLE THE ITEM AND HOLD A PUBLIC INFORMATIONAL MEETING TO DISCUSS THE MATTER AND GET PUBLIC INPUT AND THEN BRING BACK ITEM FOR FORMAL ACTION AT THE NEXT SCHEDULED COUNCIL MEETING."

Councilwoman Stefano seconded the motion, and it was carried unanimously.

- Request by Mayor Martell for Discussion and Action on the Re-Paving of Lot Driveways of the Lakeside Retirement Park.

Mayor Martell opened the discussion on the matter and informed the Town Council of previously obtained estimates for the repairs of 41 driveways in the Lakeside Retirement Park. It was also mentioned that lots 646 and 738 were not included as more information was needed before the price of the repairs could be estimated.

Without further discussion Vice-Mayor made a motion as follows,

> "TO APPROVE THE ESTIMATE AND PROPOSAL FROM OVAS & COMPANY IN THE AMOUNT OF $ 24,846.00 FOR THE REPAIRS OF 41 DRIVEWAYS AS PRESENTED AND AUTHORIZING AND ADDING THE COST OF THE REPAIRS FOR LOT 646."

Mayor Martell seconded the motion, and it was carried unanimously.

- Request by Vice-Mayor Pacheco for Discussion and Action to Provide Permanent Transportation to Residents Wanting to Attend Town of Medley Regular and Special Council Meetings.

Vice-Mayor Pacheco presented the item and explained that because a lot of residents have expressed interest in attending public meetings, he would like to request the Town to provide transportation the same way it is provided for other town events. Thus, Vice-Mayor proposed that if five (5) or more residents call in to attend public meetings the Town would then arrange transportation.

Without further discussion Vice-Mayor Pacheco placed a motion as follows,

"TO PROVIDE TRANSPORTATION PERMANENTLY TO ALL PUBLIC MEETINGS WHEN FIVE (5) OR MORE RESIDENTS SIGN UP TO ATTEND"

Mayor Martell seconded the motion, and it was carried unanimously.

- Request by Councilperson Stefano for Discussion and Action on the Medley Food Truck Park Presentation and Proposal for the Property Located at 10791 NW South River Drive.

Councilperson Stefano asked to table the discussion and action of the item and to bring back the item at the next regular scheduled council meeting.

Councilperson Stefano then made a motion to table the item until the September regular council meeting. Mayor Martell seconded the motion and it carried unanimously.

- Discussion and Action on Further Review of the Criteria, Rules and Regulations of the Start-Up Grant Program.

Director Lizmari Valido addressed the item by stating that it has been practice of the Town to only cover up to four (4) courses per term. Director Valido then requested to allow applicants to take as many classes as desired per semester in addition to allowing mini and short terms. Director Valido further explained that the request would not financially affect the Town since the program is capped at $ 8,400 per applicant.

Without further discussion, Mayor Martell made a motion as follows,

"TO ALLOW AS MANY CLASSES AS APPLICANTS DESIRE PER TERM AND TO ALSO ALLOW SHORT AND MINI TERMS EFFECTIVE THE FALL 2021 SEMESTER."

Councilwoman Ayala seconded the motion and it carried unanimously.

- Request by Mayor Martell for Discussion and Action on the Lakeside Parcel "B" Project (CIP Project No. 0238-2).

Mayor Martell addressed the item by explaining his proposal to instruct the Public Works Department clean up the dry area of the site to then draft and issue and Request for Proposal (RFP) for the assigned future use of the sit to include the senior care facility. Mayor Martell further explained that although the wetland area of the site required certain environmental professional services, the dry area could be addressed by the Town.

Vice-Mayor Pacheco then asked the Town Engineer if a permit was required to cleanup the site. Town Engineer Corzo explained that a permit is not required for the cleanup task. However, the challenges of the site had to do with the possibility of exotic species that may be homed in the site and the unknown boundaries of the wetland area, which will require environmental

professional services. Mr. Corzo circulated an evaluation matrix of the Parcel "B" site that detailed several options. The proposed options were detailed as follows.

Unranked Option:	**A**	**B**	**C**	**D**	**E**	**F**	**G**
Option Name:	**Do Nothing**	**Selective Clearing**	**Passive Area**	**Passive Park**	**The "Original" HOME RFP Option**	**Fill Now and Issue RFP**	**Affordable Housing Option**
Description:	Self-explanatory	Selective vegetation clearing with no further action	Revise the Master Plan to remove the "HOME" option with no other amenities. Clearing, Demucking and Filling of the site including the wetlands.	**Same as Option C but includes constructing new parking area, public bathroom building, walkways, and related amenities**	Issue an RFP to request proposals from interested parties to Design, Build, Operate and Finance (DBOF) a Health Related (HOME) Facility at the site	Site preparation (including clearing, demucking and filling of the existing wetlands) and proceed to issue an RFP to select DBOF Firm or Joint Venture	Proposed by CP Edgar Ayala at the July 6, 2021, Regular Council Meeting
Design Considerations:		None	Requires revisions to the Master Plan and the Stormwater Management Plan (SWP)	In addition to revising the Master Plan and SWP, need to prepare final design for the parking area and architectural plans for the restroom facility	None (if RFP is awarded, the selected firm or entity will be responsible for final design and permitting)	Need to prepare bid documents to select GC for site preparation (Short Form Contract)	TBD
Permitting:	N/A	No permits required	Apply for Environmental Permit Modifications	Apply for Environmental Permit Modifications	Environmental Permits are in place (subject to permit renewals). Selected firm will be required to apply and obtain construction permits	None, site preparation will be done in accordance with the existing environmental permits	TBD
Procurement:	N/A	Issue an Invitation to	Approve WO for	Approve WO for Design and	Issue an RFP to select	• ITB to select GC	TBD

		Bid (Short Form)	professional services and issue ITB to select GC	Environmental Permits and issue an ITB to select GC	DBOF Firm or Joint Venture	for site preparation. • RFP to select DBOF Firm or Joint Venture	
Construction:		Clearing / Landscaping Services (LC)	General Contractor (GC) and limited CEI Services	General Contractor and limited CEI Services	By Selected DBOF Firm or Joint Venture,	Initial site preparation will be performed by GC working for the Town of Medley	TBD
Probable Costs or Financial Benefits:		TBD (Funded by the Town)	• 120K (Design and Environmental Permitting) • Const. (TBD) • CEI (TBD)	In addition to the Design and Environmental Permits costs shown on Option C, it requires AE design and permitting for the Bathroom facility	The plan is to have all costs associated with the project to be a requirement of the RFP. Additional benefits may include annual lease payments (this option assumes that market interest exists to provide offer to the Town)	Same as Option E with the following modifications • Town will front the costs to proceed with Site Preparation now • Site Preparation costs may be recovered as a financial consideration of the RFP	Federal Agency Participation?
Timeline:		3 months (est.)	6 – 9 months for design and permitting, 3 months for construction (est.)	12 months (est.)	2 months to issue RFP, 3 – 6 months to obtain proposals and negotiate a contract (Proposers need to prepare plans to meet their needs and estimate costs), 12 to 15 months to construct	Same as Option E, with the following modification: • Site preparation may take 3 – 6 months to complete	TBD
Other considerations	Public Safety concerns!	Cleaning will be limited to upland areas. Wet areas to remain basically	Selected by the Council at the July 6, 2021, meeting. / Zoning and/or Land Use Change?		May require zoning change (current zoning is M-3)	M-3 Zoning is OK	

		untouched					

Town Engineer Jorge Corzo further discussed the details of every option proposed for the site taking into consideration the existing plans and permitting submitted to the U.S Army Corps of Engineers for the site in question. He further explained that the existing permits do not allow for the cleanup of the site only. Thus, proposal "F" was discussed further as it was determined it was the option that fitted, considering the existing plans, and approved permits, the desired future use and considering possible change in the zoning designation for the site. In addition, Director Corzo informed the Council that under the existing approved permit the Public Works department could initiate the clearing of the site should they wish. Vice-Mayor Pacheco then expressed his strong desire for an RFP to be issued as soon as possible and Councilperson Ayala expressed his disagreement with having investors taking advantage pf the property. Town Engineer Corzo then proposed to begin clearing up the site and holding a future council workshop to discuss potential site uses and development to then, once a clear and vision/purpose for the site is obtained, the RFP can be drafted following the use approved by council.
Councilwoman Ayala then asked if the items presented under Resolutions items G and H supported the Council's previous instructions as reflected under proposed option "C".
Mayor Martell then asked Town Engineer Jorge Corzo the risks of selecting option "C" taking into consideration the existing permits and plans if the Town changes the direction of the use already submitted. Director Corzo then explained that with every master plan submittal, previous permits get closed, thus there is a risk of denial once a new process is initiated.
Mayor Martell then placed a motion as follows,

> "TO SELECT OPTION "F" AS PROPOSED, INCLUSIVE OF THE CLEARING AND DEMOCKING OF THE SITE WITH RFP OPTION AND FUTURE COUNCIL DISCUSSION ABOUT ZONING DESIGNATON AND PLAN CHANGES."

Vice-Mayor Pacheco then seconded the motion, and the votes were cast as follows:

Vice-Mayor Ivan Pacheco- Yes
Councilwoman Lily Stefano- No
Councilperson Edgar Ayala- No
Councilwoman Lizelh Ayala- No
Mayor Roberto Martell- Yes

The motion as carried did not pass by majority of vote. Councilperson Ayala then placed a motion as follows:

> "TO SELECT OPTION "C" AS REFLECTED IN THE EVALUATION MATRIX PRESENTED BY THE CAPITAL PROJECTS AND ECONOMIC DEVELOPMENT DEPARTMENT."

Councilwoman Ayala seconded the motion, and the votes were cast as follows:

Vice-Mayor Ivan Pacheco- No
Councilwoman Lily Stefano- Yes
Councilperson Edgar Ayala- Yes
Councilwoman Lizelh Ayala- Yes
Mayor Roberto Martell- No

The motion as carried passed by majority of vote.

The next items to be addressed were Resolution Items G and H. They were discussed and acted upon as follows:

- Resolution C-1922 Approving the Proposal and Work Order with Bermello, Ajamil & Partners, Inc. to Provide Professional Architectural and Planning Services for the Parcel "B" Passive Park Project.

Town Attorney Lillian Arango read the resolution into the record. Town Engineer Jorge Corzo requested to have a language change from "Passive Park" replaced by "Passive Area" and changes as requested were accepted. Without further discussion, Councilperson Ayala made a motion to approve Resolution C-1922 with language changes as requested. Councilwoman Ayala seconded the motion, and the votes were casts as follows:

Vice-Mayor Ivan Pacheco- No
Councilwoman Lily Stefano- Yes
Councilperson Edgar Ayala- Yes
Councilwoman Lizelh Ayala- Yes
Mayor Roberto Martell- No

The motion as carried passed by majority of vote.

- Resolution C-1923 Approving the Proposal and Work Order with Davis Environmental Solutions, LLC. to Provide Professional Environmental Services in Connection with the Parcel "B" Passive Park Project.

Town Attorney read the Resolution into the record. Town Engineer Jorge Corzo requested to have a language change from "Passive Park" replaced by "Passive Area" and changes as requested were accepted. Without further discussion, Councilwoman Ayala made a motion to approve Resolution C-1923 with language changes as requested. Councilwoman Stefano seconded the motion, and the votes were cast as follows,

Vice-Mayor Ivan Pacheco- No
Councilwoman Lily Stefano- Yes
Councilperson Edgar Ayala- Yes
Councilwoman Lizelh Ayala- Yes
Mayor Roberto Martell- No

The motion as carried passed by majority of vote.

- Resolution C-1916 Amending the Capital Improvements Plan (CIP) for Fiscal Year 2021 to Include and Fund Capital Projects relating to the Parcel "B" Passive Park Project.

Town Attorney read the Resolution into the record. Town Engineer Jorge Corzo, at the request of Councilwoman Stefano, explained the relationship of the matter with the CIP plan and the Town's budget. Director Corzo further explain the need for action on the matter for the CPED department to either allocate, postpone, or adjust funds to meet the financial needs of the Town.

Without further discussion, Councilperson Ayala made a motion to approve Resolution C-1916. Councilwoman Ayala seconded the motion, and the votes were cast as follows,

Vice-Mayor Ivan Pacheco- No
Councilwoman Lily Stefano- Yes
Councilperson Edgar Ayala- Yes
Councilwoman Lizelh Ayala- Yes
Mayor Roberto Martell- No

The motion as carried passed by majority of vote.

The next items left to be addressed were Town of Medley Items. They were discussed and acted upon as follows,

- Discussion and Action on the Request to Extend Worker's Compensation Supplemental Benefit Period for Officer Jose Rodriguez.

Chief of Police Jeanette Said-Jinete approached the Council and explained that officer Joe Rodriguez, who has served the Town of Medley for over 20 years, had been on Workers Compensation benefits since a car accident that took place on May 31, 2019. Thus, although officer Rodriguez has since endured multiple surgeries is close to come back to work under light duty restrictions upon medical clearance. Thus, Chief Said-Jinete asked the Town Council to extend the worker's comp supplemental benefits for one (1) month.

Without further discussion, Mayor Martell made a motion as follows:

"TO EXTEND WORKER'S COMPENSATION SUPPLEMENTAL BENEFITS FOR OFFICER JOSE RODRIGUEZ FOR A PERIOD OF TWO (2) MONTHS."

Vice-Mayor Pacheco seconded the motion, and it was carried unanimously.

- Discussion and Action on the Request for Job Availability of One (1) Part-Time Community Service Aide Position for the Medley Police Department.

Chief Jeanette Said-Jinete requested approval to open and post job availability notice for one (1) part-time community service aid position.

Without further discussion, Mayor Martell made a motion. Vice-Mayor Pacheco seconded the motion, and it was carried unanimously.

- Discussion and Action on the Request for One (1) Part-Time Position for the Capital Projects and Economic Development Department.

Jorge Corzo, Director of the Capital Projects and Economic Development Department addressed the Town Council to request the creation of a part-time administrative position. Mr. Corzo further stated that this request is in addition to another position he would be seeking approval later in the fiscal year.

Without further discussion, Mayor Martell made a motion as follows:

"TO CREATE, NOTICE AND FILL THE PART-TIME AMINISTRATIVE POSITION AS REQUESTED."

Vice-Mayor Pacheco seconded the motion, and it was carried unanimously.

- Discussion and Action on the Town of Medley COVID-19 Return to Work Policy.

Human Director Olga Quin addressed the Council and explained that last February the COVID-19 return-to-work policy was last amended. However, the state has since lifted the state of emergency and many of the mandates previously imposed including but not limited to the face mask mandates, temperature checks, social distancing protocols and testing requirements. Thus, the Town's current practices needed to be revisited for both employees and the public.

After a brief discussion, the following was decided to be effective July 7, 2021:

- Mask Mandate: Optional for both, Employees, and the Public;
- Temperature Checking: Continue Practice for Public and Employees;
- Capacity Limitation/Social Distancing: Flexible and Optional;
- Social Gatherings/Events: Flexible and Optional;
- Testing Requirements- Continue the Testing Requirement for Domestic and International Travel.

Without further discussion, Councilperson Ayala made a motion as follows:

"TO AMEND THE RETURN-TO-WORK POLICY EFFECTIVE JULY 7, 2021 TO REFLECT THE MASK MANDATE TO BE OPTIONAL FOR BOTH EMPLOYEES AND THE PUBLIC, TO CONTINUE TEMPERATURE CHECKS FOR PUBLIC AND EMPLOYEES, TO SET CAPACITY LIMITATION AND SOCIAL DISTANCING TO BE

FLEXIBLE AND OPTIONAL, TO SET SOCIAL GATHERINGS AND EVENTS TO BE FLEXIBLE AND OPTIONAL, AND TO CONTINUE TESTING REQUIREMENTS FOR BOTH DOMESTIC AND INTERNATIONAL TRAVEL."

Vice-Mayor Pacheco seconded the motion and it carried unanimously.

- Discussion and Action on Upcoming Town of Medley Events.

Town Clerk Martinez addressed the Council and explained that following the earlier scheduled Council workshop where upcoming Town events were discussed, a memorandum had been presented to include all directives and Council consensus noted for the upcoming Town events from July to December 2021 for formal action as discussed. It was also announced that the next Council workshop to further discuss Town events was, as requested, to be held on September 7, 2021.

Without further discussion, Mayor Martell made a motion to approve all upcoming Town events as presented. Councilwoman Stefano seconded the motion, and it was carried unanimously.

- Discussion and Action on the Cancellation of the August 2, 2021 Regular Council Meeting.

Town Clerk Martinez addressed the request following the Town's practice to cancel the August Regular Council meeting for the month of August.

Without further discussion, Mayor Martell made a motion to cancel the August regular council meeting. Councilwoman Stefano seconded the motion, and it was carried unanimously.

The next item to be addressed was the Add-On Item a requested by Councilwoman Ayala. It was discussed and acted upon as follows,

- Item 13(A)18 Request by Councilwoman Ayala for Discussion and Action on the Request to Have Police Presence on all Regular and Public Meetings.

Councilwoman Ayala addressed the item and explained that police presence is necessary especially when controversial items are discussed in public forums. Councilwoman Ayala further explained that although language is put in place to address inappropriate behavior, derogatory comments and racial slurs, the Mayor has at times failed to impose order, and she has also noticed that order is maintained whenever police presence is present.

Without further discussion Councilwoman Ayala made a motion as follows,

"TO HAVE POLICE PRESENCE AT ALL PUBLIC MEETINGS, NOT LIMITED TO REGULAR, SPECIAL AND INFORMATIONAL MEETINGS, REQUIRING ALL APPLICABLE STAFF TO ATTEND SAID MEETINGS."

Mayor Martell seconded the motion, and it carried unanimously.

- Monthly Update by Town Staff on Current Town Projects and Related Finances.

Finance Director Roy Danziger approached the Council and referred to the DR-420 form that had been previously circulated. Director Danziger further stated that the reporting form needed to be completed and submitted to the Florida Department of Revenue and the Office of the Property Appraiser by August 4, 2021. Thus, he reminded the Council of the budget workshop scheduled for July 15, 2021 in which the tentative millage rate had to be set. He also stated that as the DR-420 shows, the current millage rate is 4.800 mills and the rills back rate is 4.4029 and a preview of what would be presented at the budget workshop, which is a proposed operating millage rate of 3.900 mills. Councilperson Ayala mentioned how the Town's proposed millage rate was connected to the annexation efforts being pursued and how additional meetings and discussions were being arranged on the matter.

Since there was no further business to consider Mayor Martell made a motion to adjourn the meeting, Councilwoman Stefano seconded the motion, and the meeting was adjourned at 10:32PM on July 6, 2021.

Victoria Martinez, FRP, CMC, Town Clerk

Roberto Martell, Mayor